

HOUSE No. 4115

The Commonwealth of Massachusetts

PRESENTED BY:

Danillo A. Sena

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to preventing immigration reporting and ensuring the right to legal counsel.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/13/2025</i>

HOUSE No. 4115

By Representative Sena of Acton, a petition (accompanied by bill, House, No. 4115) of Danillo A. Sena relative to immigration reporting and the right to legal counsel. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to preventing immigration reporting and ensuring the right to legal counsel.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 29 of the General Laws is hereby amended by inserting after
2 section 2JJJJJ the following section:-

3 Section 2KKKKKK. (a) There shall be established and set up on the books of the
4 commonwealth a separate fund known as the Immigrant Legal Assistance Fund, hereinafter
5 referred to as the fund. The fund shall award funding to organizations who represent and provide
6 legal counsel to undocumented immigrants in a court of law. The fund shall be administered by
7 the Massachusetts Legal Assistance Corporation.

8 (b) The fund shall be credited with: (i) revenue from appropriations or other money
9 authorized by the general court and specifically designated to be credited to the fund; (ii) interest
10 earned on money in the fund; (iii) contributions from private sector entities, including local
11 immigration agencies or non-profits, foundations and other organizations; and (iv) federal grants
12 and other gifts, grants and donations for the support of legal representation for undocumented

immigrants. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund.

(c) The Massachusetts Legal Assistance Corporation shall annually, not later than December 31, report on the activity of the fund to the: (i) chairs of the joint committee on the judiciary; (ii) chairs of the house and senate committees on ways and means; and (iii) clerks of the house of representatives and senate.

SECTION 2. Chapter 276 of the General Laws is hereby amended by adding the following section:-

Section 104. All law enforcement officers of local and state law enforcement agencies shall not contact or share information with federal authorities, including federal immigration authorities, regarding any person's immigration status. Law enforcement officers or law enforcement agencies may share such information with federal authorities only when verified through the commonwealth's criminal offender record information database established in section 172 of chapter 6 that the individual has a documented criminal conviction. All law enforcement officers or law enforcement agencies communications with federal authorities shall follow departmental protocols and be authorized by a supervising officer who shall document the basis for sharing the individual's information.